

Attorney fees

Plaintiff seeks one-third of the total settlement amount as fees, relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.) Following typical practice, however, the fee award will not be considered at this time, but only as part of final approval.

Similarly, litigation costs and the requested representative payment of \$5,000 for the representative plaintiff will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807.

Ruling

1. The settlement is sufficiently fair, reasonable, and adequate to justify *preliminary* approval. Plaintiff’s Motion is **granted**.
2. Counsel are directed to prepare an order, attaching a copy of this ruling, the other findings in the previously submitted proposed order, and to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs’ counsel are to submit a compliance statement one week before the compliance hearing date, which shall include the matters necessary to comply with Code of Civil Procedure section 384(b).
3. Notwithstanding any contrary provision in the settlement agreement, 5% of the attorney’s fees are to be withheld by the administrator until released by the Court after review of the compliance statement.
4. The Court may issue a release of the remaining 5% fees through an unreported minute order without a hearing upon review of the Plaintiff’s compliance statement.
5. No appearance is required at the hearing on July 1, 2026.

6. 9:00 AM CASE NUMBER: C25-02253
CASE NAME: MARLON LEE VS. DANIELE JACUZZI
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: MEADOW CREEK GROUP, LLC
TENTATIVE RULING:

Defendant Meadow Creek Group, LLC (“Defendant”) brings this demurrer to the first amended complaint (“Complaint”) of plaintiff Marlon Lee (“Plaintiff”). Defendant challenges Plaintiff’s first

cause of action for negligence and second cause of action for premises liability.

For the reasons discussed below, Defendant's demurrer to the first cause of action for negligence and the second cause of action for premises liability is **SUSTAINED** with leave to amend. Plaintiff may file and serve an amended complaint within 15 days of notice of entry of this order. (Code Civ. Proc. § 472b; CRC, rule 3.1320(g).)

Meet and Confer

The meet and confer requirement has been satisfied. (Amy L. Foscalina Decl., ¶ 4, Exh. B; Code Civ. Proc., § 430.41, subd. (a)(3)(B).)

Legal Standard for Demurrer

In ruling on a demurrer, a court must treat as true all properly pleaded material facts contained in the complaint, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) "We also accept as true facts which may be inferred from those expressly alleged." (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.) A demurrer challenges "the sufficiency of the allegations in a complaint as a matter of law," not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (*Id.* at pp. 1404-1405.)

Questions of fact cannot be decided on demurrer. (*Berryman v. Merit Prop. Mgmt., Inc.* (2007) 152 Cal.App.4th 1544, 1556.) Because a demurrer tests only the sufficiency of the complaint, a "court will not consider facts which have not been alleged in the complaint unless they may be reasonably inferred from the matters which have been pled or are proper subjects of judicial notice." (*Hall v. Great W. Bank* (1991) 231 Cal.App.3d 713, 718, fn.7.) "[A]t the demurrer stage the complaint must be construed in the light most favorable to the plaintiff." (*Wilson v. Houston Funeral Home* (1996) 42 Cal.App.4th 1124, 1138.)

"Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given." (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) "However, leave to amend should not be granted where, in all probability, amendment would be futile." (*Foroudi v. The Aerospace Corp.* (2020) 57 Cal.App.5th 992, 1000 [citations and internal quotes omitted].)

Background: Allegations from the Complaint

Plaintiff filed the initial complaint in this matter on October 7, 2025. Plaintiff filed the instant Complaint on January 16, 2026.

The Complaint alleges that on September 21, 2023, Plaintiff was slashed in the face with a knife and hit with an ax on his shoulder and neck, resulting in severe injuries. (Complaint, ¶¶ 9-10.) Plaintiff was attacked by a known criminal transient on Slatten Ranch Road North of Wicklow Way in the City of Antioch. (*Id.* at ¶ 9.) Plaintiff alleges that Defendant owns property on, adjacent to and/or near where the attack occurred. (*Id.* at ¶ 2.) The attacker's camper was parked at the location of the attack. (*Id.* at ¶ 15.) The location of the attack was "known to regularly have trucks and vehicles parked overnight on and near them, as well as dangerous people and animals loitering and living in vehicles, such as the assailant who attacked Plaintiff. Plaintiff is further informed and believes that the area had a known history of crime including but not limited to reported vandalism incidents, previous assaults of people, and other crime." (*Id.* at ¶ 16.)

“Despite this known history of crime, Defendants allowed persons and dangerous animals to continue to live, loiter, and/or trespass on the SUBJECT PROPERTIES and adjacent roadways and sidewalks prior to and on the date of the SUBJECT INCIDENT. Defendants failed to take reasonable measures to maintain the SUBJECT PROPERTIES in a reasonably safe condition, including taking reasonable measures to prevent reasonably foreseeable third-party criminal conduct. Defendants knew, or should have known, that people were using their properties to illegally camp, loiter, and engage in criminal conduct, creating a menace and hazard to those lawfully on the public roadways, including but not limited to Slatten Ranch Road and Wicklow Way.” (Complaint, ¶ 17.)

“Defendants took no, or at minimum, inadequate action to remedy, warn against, protect against, or minimize the risk of harm from reasonably foreseeable third party criminal conduct, which increased the risk of harm to those lawfully on the properties, sidewalks and roadways near and adjacent to the SUBJECT PROPERTIES.” (Complaint, ¶ 18.) Defendant had a duty to keep the sidewalk area adjacent to their property in a safe and non-dangerous condition. (*Id.* at ¶ 30.) Defendant “allowed a large number of persons to loiter, camp, store personal belongings, possess vicious dogs, and accumulate significant trash and debris on their properties and the abutting sidewalk, such that they were dangerous to property and persons using the sidewalk in a reasonable manner. . .” (*Ibid.*) “[T]he condition of Defendants’ properties was such that the assailant asserted that Slatten Ranch Road was private property, which he apparently believed that he had the right to prevent access to with his dogs and with the use of force.” (*Id.* at ¶ 32.)

Plaintiff seeks damages according to proof. (Complaint, p. 15.)

Discussion

Defendant argues that the Complaint is uncertain, that Plaintiff has not established a duty of care, and that Plaintiff has not established proximate cause. (MPA ISO Demurrer, pp. 3-10.)

Uncertainty

Defendant contends that the Complaint fails because it is uncertain due to not sufficiently identifying the location of the incident. (Notice of Demurrer, p. 2; MPA ISO Demurrer, p. 5; Reply, p. 2.) “Plaintiff does not plead sufficient facts to identify the location where the Incident occurred. . .” (MPA ISO Opposition, p. 5:19-20.) Defendant also asserts that the defined term in the Complaint, “Subject Properties,” is vague and that it is unclear whether the term “refers to the real property owned by each Defendant, to the two public roads, or both.” (*Id.* at p. 5:13-14.)

Defendant bases this argument on Code of Civil Procedure section 430.10, subdivision (f) (Notice of Demurrer, p. 2), which allows a party to demurrer when “The pleading is uncertain. As used in this subdivision, ‘uncertain’ includes ambiguous and unintelligible.”

Plaintiff argues that the Complaint “is sufficiently certain as it provides Defendant with fair notice of the essential facts of the claim and the locations where the wrongful and criminal acts occurred.” (Opposition, p. 4.) Plaintiff points out that the assault did not take place in a single location, as the assailant went from his camper to Plaintiff’s truck and back and forth a few times. (*Ibid.*)

“ ‘[D]emurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.’ ” (*A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695.) “ ‘A demurrer for uncertainty is strictly construed,

even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.’ ” (*Ibid.*) “ ‘[U]nder our liberal pleading rules, where the complaint contains substantive factual allegations sufficiently apprising defendant of the issues it is being asked to meet, a demurrer for uncertainty should be overruled or plaintiff given leave to amend.’ ” (*Ibid.*) “A special demurrer for uncertainty is not intended to reach the failure to incorporate sufficient facts in the pleading, but is directed at the uncertainty existing in the allegations actually made.” (*Butler v. Sequeira* (1950) 100 Cal.App.2d 143, 145-146.)

Here, the Court finds that the defined term, “Subject Properties” that first appears at paragraph 8 of the Complaint is neither vague nor ambiguous/uncertain as it refers to the “properties owned, controlled, leased, managed, and/or maintained by Defendants,” which are located “on or near Slatten Ranch Road and Wicklow Way, Antioch, CA 94531.” (Complaint, ¶ 8.)

With respect to Defendant’s argument that “Plaintiff does not plead sufficient facts to identify the location where the Incident occurred,” the Court disagrees. The Complaint alleges that the attack took place “on or near Slatten Ranch Road north of Wicklow Way in the City of Antioch.” (Complaint, ¶ 9.) Not only does it identify the closest intersection to the attack, but it identifies where in relation to the intersection the attack occurred—north of Wicklow Way.

In light of the analysis above, Defendant’s demurrer to Plaintiff’s Complaint for uncertainty is **OVERRULED**.

Duty of Care

“The elements of a negligence cause of action are **the existence of a legal duty of care**, breach of that duty, and proximate cause resulting in injury.” (*McIntyre v. The Colonies-Pacific, LLC* (2014) 228 Cal.App.4th 664, 671, italics and boldface added.) “The elements of a cause of action for premises liability are the same as those for negligence: **duty**, breach, causation, and damages.” (*Castellon v. U.S. Bancorp* (2013) 220 Cal.App.4th 994, 998, italics and boldface added.)

Here, Defendant attacks Plaintiff’s negligence and premises liability claims with arguments that Plaintiff has not established a duty of care. (MPA ISO Demurrer, pp. 3-10.) Defendant addresses both the statutory duty of care and the general duty of care. (MPA ISO Demurrer, pp. 3-10.)

Statutory Duty of Care

Defendant argues that the Streets and Highways Code does not create a duty because it deals with repairs and there are no allegations that the sidewalk here was out of repair. (*Id.* at p. 3.) Defendant argues that certain ordinances of the Antioch Municipal Code that appear in the Complaint deal with bicycles or “abandoned, wrecked, dismantled, or inoperative vehicles,” neither of which are alleged to have caused any alleged injuries here. (*Ibid.*) Other portions of the Antioch Code cited in the Complaint deal with nuisance, which Defendant applies only to the conditions “on the property,” which is not alleged to be the situation here. (*Id.* at p. 4.) With respect to Title 7, Chapter 8, “Sidewalk Maintenance and Repair,” Defendant cites what maintenance and repair include and argues that “Plaintiff has pled no facts showing a violation of this section that caused the Incident. This Chapter does not apply to the loitering or camping of persons as claimed by Plaintiff, and the ordinance makes no such mention thereof.” (MPA ISO Demurrer, p. 4:13-24.)

Plaintiff argues that although the Streets and Highway Code “generally establishes an abutting landowner’s duty to maintain a sidewalk only to the municipality, California courts have long held that a private cause of action arises directly against the landowner if a local municipal ordinance explicitly imposes a duty to the public and creates liability for injuries.” (Opposition, p. 12.) Plaintiff cites to *Selger v. Steven Brothers, Inc.* (1990) 222 Cal.App.3d 1585, 1590 and *Gonzales v. City of San Jose* (2004) 125 Cal.App.4th 1127, in support of this. (*Ibid.*) Plaintiff argues that in this case, the Antioch Municipal Code creates such a private right of action. (Opposition, p. 12.)

Here, it is true that although Street and Highway Code section 5610 does not impose liability on abutting owners for injuries received by travelers from defective sidewalks (*Schaefer v. Lenahan* (1944) 63 Cal.App.2d 324, 331-332), municipal ordinances can make adjacent landowners liable for sidewalk defects. (*Gonzales v. City of San Jose* (2004) 125 Cal.App.4th 1127, 1138-1139 [“Under the two laws, both San Jose as well as the abutting property owner could be held liable to a plaintiff injured as a result of a dangerous condition on a city-owned sidewalk.”].)

Antioch Municipal Code section 7-8:02, subdivision (c), states in full:

Maintenance and repair of the sidewalk area ***shall include, but not be limited to***, maintenance and repair of surfaces including grinding, removing and replacing sidewalk, repairing and maintaining curb and gutters, removing and filling or replacing parking strips, removing of weeds and/or debris, maintaining signs allowed under the Antioch Municipal Code, tree root pruning and installing of root barriers, trimming shrubs and/or ground cover and trimming shrubs in area within the sidewalk area so that the sidewalk area will remain in a condition that is not dangerous to property or to persons using the sidewalk area in a reasonable manner and which will not interfere with the public convenience in the use of the sidewalk area.
(Italics and boldface added.)

Antioch Municipal Code Section 7-8.03 states in full that

The owner shall owe a duty to members of the public to keep and maintain the sidewalk area in a safe and non-dangerous condition. ***If, as a result of the failure of owner to maintain the sidewalk area in a non-dangerous condition as required by § 7-8.02, any person suffers injury or damage to person or property***, the owner shall be liable to such person for the resulting damages or injury.
(Italics and boldface added.)

The Court finds that the Complaint does not plead a statutory duty. The sidewalk ordinance is not seemingly triggered because Plaintiff is not alleged to have been on the sidewalk when he was attacked as the Complaint alleges that the attack occurred when he was “in his parked semi-truck,” and had only put his foot out when the attacker became aggressive and hostile. (Complaint, ¶¶ 9-10.) Further, Antioch Municipal Code section 7-8:02, subdivision (c), lists the sort of issues that property owners have a duty to maintain and the danger that caused Plaintiff’s injuries here are not explicitly identified as being a property owner’s duty. While neither Defendant nor Plaintiff address the

“including but not limited to” portion of the ordinance, the rule of statutory construction known as *ejusdem generis* provides that “when a general word or phrase follows a list of specifics, the general word or phrase will be interpreted to include only items of the same class as those listed.” (*In re Marriage of Mullan & Kodiyamplakkil* (2020) 51 Cal.App.5th 604, 615 [“applying the doctrine of *ejusdem generis* to the phrase ‘including, but not limited to’ . . . we conclude a court is limited to circumstances that are similar in nature to those enumerated”].) Here, the list that appears in 7-8:02 involves tree roots, cracks and weeds, etc., things more akin to maintenance than policing the sidewalk for homeless people who might be using the sidewalk.

The Court notes that Antioch Municipal Code § 5-1.202(C)(1) identifies a nuisance as “[a]ny vacant building, structure or other property that is unlocked or unsecured or has broken or missing doors or windows or other unsecured openings allowing unauthorized access by trespassers, or constituting a potential attraction to children or a harbor for vagrants, criminals, or other unauthorized persons, or so as to enable persons to resort to committing nuisance or other criminal activities,” which seems to come close to the situation here, but here the Subject Properties are alleged to be “vacant lots” with no structures present. (Complaint, ¶ 21.) “[F]acts not alleged are presumed not to exist.” (*Kramer v. Intuit, Inc.* (2004) 121 Cal.App.4th 574, 578.)

General Duty of Care

Defendant argues that, with respect to the *Rowland* factors (foreseeability of harm to the plaintiff, the degree of certainty that the plaintiff suffered injury, the closeness of the connection between the defendant’s conduct and the injury suffered, the moral blame attached to the defendant’s conduct, the policy of preventing future harm, the extent of the burden to the defendant and consequences to the community of imposing a duty to exercise care with resulting liability for breach, and the availability, cost, and prevalence of insurance for the risk involved), although it is undisputed that Plaintiff suffered an injury, almost all the other factors go in their favor. (MPA ISO Demurrer, pp. 6 [Defendant also acknowledges that it is insured but points out that this should be a minor factor in establishing a duty of care].) Defendant points out that there must be “heightened” foreseeability of third-party criminal activity shown by prior similar incidents or other indications of a reasonably foreseeable risk of violent criminal assaults in that location. (*Id.* at p. 7.) Defendant further points out that a special relationship is needed between a plaintiff and defendant for the defendant to be liable for the third-party criminal behavior of another. (*Ibid.*) Defendant also contends that Plaintiff was attacked while he was on a public road and case law supports no duty to those on public property adjacent to the landowner’s property. (*Id.* at p. 8.)

Plaintiff argues that he has sufficiently pleaded a general duty of care, especially under the liberal pleading standard, which liberally construes a complaint and accepts all properly pleaded facts as true. (Opposition, pp. 4-5.) Plaintiff contends he pled actual and constructive notice of third-party danger (*Id.* at p. 5, citing ¶¶ 16, 18, 19, and 20), the Defendant’s specific negligent omissions (*Id.* at p. 6, citing ¶¶ 17, 18, 19, 20, and 22), and that the duty was owed based on ownership and “actual exercise of control over” the where the incident occurred. (*Id.* at p. 6, citing ¶¶ 21, 35, 36, and 37.) Plaintiff further contends that the *Rowland* factors do not support an exception to the general duty of care under Civil Code section 1714, and that he sufficiently pleaded a history of violent crime so as to satisfy heightened foreseeability. (*Id.* at pp. 6-8.) Plaintiff also contends that there are ownership and control allegations that raise questions of fact that cannot be resolved on demurrer. (*Id.* at pp. 9-11.)

Here, the Court finds Defendant's argument regarding the need for a special relationship to be involved in order to hold one liable for third-party criminality persuasive. "[I]t also is well established that, as a general matter, there is no duty to act to protect others from the conduct of third parties. (*Delgado v. Trax Bar & Grill* (2005) 36 Cal.4th 224, 235.) "A defendant may owe an affirmative duty to protect another from the conduct of third parties if he or she has a 'special relationship' with the other person." (*Ibid.*) This sort of special relationship has been found in cases of business proprietors and their "tenants, patrons, or invitees." (*Id.* at p. 237.) However, Defendant owns a vacant lot and Plaintiff's presence there is not alleged to have been based on any sort of invitation, or tenant or patron type of relationship. Despite Defendant raising this argument in the demurrer (and reply), the opposition is silent on this issue. The *Alcaraz* case cited by Plaintiff involves a tenant and their direct landlord, thus involving the sort of relationship that is not alleged in the Complaint here. (*Alcaraz v. Vece* (1997) 14 Cal.4th 1149, 1152 [it also does not involve third-party criminal conduct].) The *Alpert v. Villa Romano Homeowners Assn.* (2000) 81 Cal.App.4th 1320, case cited by Plaintiff is distinguishable because the harm there was caused directly from the unmaintained sidewalk, not from a third-party criminal.

Based on the above, the Court will SUSTAIN Defendant's demurrer based on the Complaint's failure to properly allege a duty.

Proximate Cause

"The elements of a negligence cause of action are the existence of a legal duty of care, breach of that duty, and **proximate cause** resulting in injury." (*McIntyre v. The Colonies-Pacific, LLC* (2014) 228 Cal.App.4th 664, 671, italics and boldface added.) "The elements of a cause of action for premises liability are the same as those for negligence: duty, breach, **causation**, and damages." (*Castellon v. U.S. Bancorp* (2013) 220 Cal.App.4th 994, 998, italics and boldface added.)

Assuming Plaintiff properly alleged

Here, proximate cause is an element of both negligence and premises liability. Had Plaintiff properly pled duty, and by extension breach of that duty, proximate cause would be presumed under the general pleading standard for these sorts of negligence claims. (See *Bockrath v. Aldrich Chemical Co., Inc.* (1999) 21 Cal.4th 71, 77.)

Ruling on the Demurrer

The Court **SUSTAINS** Defendant's demurrer to the first cause of action for negligence and the second cause of action for premises liability, with leave to amend. Plaintiff may file and serve an amended complaint within 15 days of notice of entry of this order. (Code Civ. Proc. § 472b; CRC, rule 3.1320(g).)